

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Crl.Misc.No.23159-Q of 2020
(Mrs.Rameeza Majeed Niazmi v. ASJ etc.)

JUDGMENT

Date of hearing: 12.02.2026

Petitioner by: Mr. Muhammad Ahsan Bhoon, Advocate.
State by: Rana Muhammad Asif Iqbal, Assistant District
Public Prosecutor.
Respondent by: M/S S.M. Zeeshan Mirza, Barrister Sarim
Hayder and Abdul Muqatadir, Advocates.

ABHER GUL KHAN, J. The instant petition, instituted by the petitioner, Mrs.Rameeza Majeed Nizami under Section 561-A, Cr.P.C seeks the quashment of proceedings arising out of a private complaint titled Azam Badar v. Mrs. Rameeza Majeed Nizami, presently pending before the learned Additional Sessions Judge, Lahore. Likewise, Criminal Miscellaneous No.23161-Q of 2020 has been preferred by the petitioner under the same provision of law, praying for the quashment of proceedings emanating from another private complaint bearing the identical title and pending before the same learned Court. Since both petitions arise out of private complaints instituted by respondent No.2 against the petitioner and involve substantially similar questions of law and fact, hence the same are being disposed of through this single judgment.

2. Facts necessary for the adjudication of the instant petitions are that respondent No.2 Azam Badar instituted private complaints under Section 200 Cr.P.C., alleging commission of offences punishable under Sections 499 & 500 PPC. The said complaints were filed on 18.10.2019 against Mrs.Rameeza Majeed Nizami (petitioner). As per the averments contained in the complaint, respondent No.2 had been employed with Nida-i-Millat (Private) Limited Company (hereinafter referred to as **the Company**) in 1991. It was asserted that in the year 2010, pursuant to a duly

registered Trust Deed, he was appointed as a Trustee of the Majeed Nizami Trust (hereinafter referred to as **the Trust**). In such capacity, he was entrusted with overseeing and supervising the affairs of the Company and the Trust being a substantial shareholder therein. Allegedly, the petitioner, being the Chairperson of the Trust and acting as Chief Executive Officer of the Company, in conjunction with the Board of Trustees, unilaterally reduced the retirement age of certain officials of the Company on 27.02.2019 and in consequence thereof issued a retirement order dated 28.02.2019, whereby respondent No.2 was retired from service. The crux of allegation in both the complaints is that on 05.04.2019, a publication appeared on the front page of the daily newspapers “The Nation” and “Nawa-e-Waqat” prominently displayed in a 6 x 4.5 inch format along with the photograph of respondent No.2 allegedly with the intent to ridicule and humiliate him. The said publication caused serious harm to his reputation and standing thereby constituting defamation within the meaning of Sections 499 & 500 PPC. Upon recording the preliminary statement of the complainant and his witnesses, the learned Additional Sessions Judge, Lahore vide separate orders of even dated 10.12.2019 summoned the petitioner to face trial in both the complaints. Aggrieved thereof, the petitioner has filed the instant petitions.

3. Arguments heard. Record perused.

4. A perusal of the record reveals that respondent No.2, Azam Badar, simultaneously instituted two complaints titled Azam Badar v. Mrs.Rameeza Majeed Nizami on 18.10.2019 invoking Sections 499 & 500 PPC. The gravamen of the allegations set forth therein was that a publication carried in the daily “The Nation” and “Nawa-e-Waqat” had adversely affected his reputation and standing in society, and that, by reason of the said publication, the petitioner had committed defamation punishable under Section 500 PPC. The record further discloses that prior thereto on 06.04.2019 a duly authorized attorney for conducting of litigation and Director of the

Company Muhammad Aziz Bin Shafi got lodged FIR No.313/2019 at Police Station Civil Lines, Lahore under Sections 420, 468, 471 & 408 PPC. In the said FIR, it was alleged that respondent No.2 had remained in the employment of the Company for approximately twenty-five years and had served as Head of Accounts for the preceding fifteen years. Owing to his position, he had also been entrusted with various administrative responsibilities and was in custody of important and sensitive documents of the Company. It was further alleged that upon his retirement from service with effect from 01.03.2019, he was called upon to complete formal clearance and to hand over certain important documents, however he allegedly failed to comply. The FIR categorically contained the fact that upon suspicion, the Company initiated an internal inquiry, which purportedly revealed that respondent No.2 with a view to secure unlawful monetary gain had been procuring newsprint from the market at rates higher than the prevailing market price, thereby allegedly caused financial loss to the Company exceeding twenty crore rupees.

5. In the backdrop of the facts narrated hereinabove, it becomes manifest that the edifice of the private complaint rests upon a public notice published in the daily “The Nation” and “Nawa-e-Waqat” dated 05.04.2019. In order to properly appreciate the controversy and to examine the substance of the allegations, it is deemed appropriate to advert to the contents of the said notice, the same are reproduced hereunder:-

“Public be warned Azam Badar Ex.Head (Finance) of Nida-i-Millat (Pvt.) Ltd. has committed heinous fraud with Nida-i-Millat (Pvt.) Ltd., the Nation publications (Pvt.) Ltd and Nida investments & printing corporation (Pvt.) Ltd, as such, criminal proceedings have already been lodged against him. The companies do not owe any responsibility qua the accused and bear no liability for his actions.”

It is pertinent to observe that, prior to the institution of the aforesaid private complaint, FIR No.313/2019 (mentioned supra) had already been registered regarding the alleged acts of fraud attributed to respondent No.2 in relation to the affairs of the Company. In such circumstances, the filing of the complaint by respondent No.2

against the petitioner ostensibly appears to be a counterblast to the said criminal proceedings, seemingly aimed at warding off the legal consequences arising therefrom. It is further noteworthy that the private complaints were instituted after a lapse of approximately six months and thirteen days from the date of publication of the impugned notice. This delay, viewed in the contextual background of the pending criminal case, prima facie lends support to the inference that the complaints may have been filed as an afterthought apparently to shield respondent No.2 from the ramifications of the proceedings already set in motion against him. In the foregoing backdrop, the pivotal question which arises for determination is whether in the attendant circumstances, the contents of the publication in question can be construed as defamatory within the contemplation of law, or whether the same were issued as a precautionary measure in good faith to safeguard the interests of the Company and to apprise the public at large of the alleged acts attributed to respondent No.2. For a proper resolution of the issue so posed, it is necessary to advert to the language and import of Section 499 PPC wherein the expression “defamation” has been defined in the following terms:-

“499. Defamation. Whoever by words either spoken or intended to be read, or by sign or by visible representations, makes or publishes any imputation concerning any person intending to harm, or knowing or having reason to believe that such imputation will harm, the reputation of such person, is said, except in the cases hereinafter excepted, to defame that person.”

A plain reading of the afore-referred provision further elucidates that an imputation, though prima facie falling within the ambit of Section 499 PPC, would not constitute defamation if it is covered by any of the exceptions enumerated therein. In other words, where the case of an accused squarely falls within any of the prescribed exceptions, the act complained of ceases to attract criminal liability for defamation. For reference, the exceptions of Section 499 PPC are mentioned below:-

First Exception. Imputation of truth which public good requires to be made or published. It is not defamation to

impute anything which is true concerning any person if it be for the public good that the imputation should be made or published. Whether or not it is for the public good is a question of fact.

Second Exception. Public conduct of public servants. It is not defamation to express in good faith any opinion whatever respecting the conduct of any person of a public servant in the discharge of his public functions, or respecting his character, so far as his character appears in that conduct, and no further.

Third Exception. Conduct of any person touching any public question. It is not defamation to express in good faith any opinion whatever respecting the conduct of any person touching any public question, and respecting his character, so far as his character, appears in that conduct, and no further.

Fourth Exception. Publication of reports of proceedings of courts. It is not defamation to publish a substantially true report of the proceedings of a Court of Justice, or of the result of any such proceedings.

Fifth Exception. Merits of case decided in Court or conduct of witness and others concerned. It is not defamation to express in good faith any opinion whatever respecting the merits of any case, civil or criminal, which has been decided by a Court of Justice or respecting the character of such person, as far as his character appears in that conduct, and no further.

Six Exception. Merits of public performance. It is not defamation to express in good faith any opinion respecting the merits of any performance which its author has submitted to the judgment of the public, or respecting the character of the author so far as his character appears in such performance, and no further.

Seventh Exception. Censure passed in good faith by person having lawful authority over another. It is not defamation in a person having over another any authority, either conferred by law or arising out of a lawful contract made with that other, to pass in good faith any censure on the conduct of that other in matters to which such lawful authority relates.

Eighth Exception. Accusation preferred in good faith to authorized person. It is not defamation to prefer in good faith an accusation against any person to any of those who have lawful authority over that person with respect to the subject-matter of accusation.

Ninth Exception. Imputation made in good faith to person for protection of his or other's interests. It is not defamation to make an imputation on the character of another, provided that the imputation be made in good faith for the protection of the interest of the person making it, or of any other person, or for the public good.

Tenth Exception. Caution intended for good of person to whom conveyed or for public good. It is not defamation to convey a caution, in good faith, to one person against another, provided that such caution be intended for the good of the person to whom it is conveyed, or of some person in whom that person is interested, or for the public good."

(emphasis supplied)

When the foregoing exceptions are examined, it becomes evident that the complaints instituted by respondent No.2 against the

petitioner squarely falls within the tenth exception to Section 499 PPC and consequently no offence punishable under Section 500 PPC is made out. It is an admitted position that the petitioner serves as the Chief Executive Officer of the Company and also as the Chairperson of the Majeed Nizami Trust, whereas respondent No.2 had remained in the employment of the Company for approximately twenty-five years and, by virtue thereof, had access to documents pertaining to the Trust. Upon detection of alleged fraud, the Company conducted an internal audit. Thereafter, a public notice was published in the daily “The Nation” and “Nawa-e-Waqat” dated 05.04.2019, clarifying that the Companies of the petitioner disowned responsibility for the acts of respondent No.2, who was alleged to have committed fraud against Nida-i-Millat (Pvt.) Ltd., The Nation Publications (Pvt.) Ltd., and Nida Investments & Printing Corporation (Pvt.) Ltd. On the succeeding day, i.e., 06.04.2019, FIR No. 313/2019 was lodged by the Director and lawful attorney of the Company. In the totality of these circumstances, the impugned publication cannot, by any stretch of legal reasoning, be construed as defamatory, rather it was precautionary in character and issued as a public caution to avert potential vicarious liability, expressly notifying the public that the Company would not be responsible for unauthorized acts undertaken by its employee beyond the scope of employment. Such publication constitutes a preventive and evidentiary measure demonstrating that reasonable steps were taken to forestall misconduct. For these reasons, the order passed by the learned Additional Sessions Judge, Lahore, summoning the petitioner for an offence under Section 500, PPC, is bereft of lawful foundation and cannot be sustained. Consequently, the continuance of these proceedings before the trial court would be abuse of the process of the Court. Reliance is placed upon the cases reported as Muhammad Ali and another v. Muhammad Aslam and another (2002 MLD 726), Abdul Karim and 5 others v. Abu Zafar Qureshi and 3 others (PLD 2001 Karachi 115), Muhammad Abid and

others v. Nusrat Ali (2000 PCrLJ 1847) and Aun Saieed Hashmi and another v. The State and 2 others (PLD 1976 Karachi 706).

6. In view of the foregoing discussion and for the reasons recorded hereinabove, the instant miscellaneous application as well as Crl.Misc.No.23161-Q of 2020 are allowed. As a necessary corollary thereto, all proceedings emanating from the complaints titled Azam Badar v. Mrs.Rameeza Majid Nizami pending before the learned Additional Sessions Judge, Lahore in respect of the alleged offences under Sections 499 & 500 PPC are hereby **quashed**.

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

The judgment was announced
on 12.02.2026, dictated, prepared,
and signed on 20.02.2026.
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